



Bureau of Experts at the Council of Ministers
Official Translation Department

Anti-Cybercrime Law

Royal Decree No. M/17
March 27, 2007

Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.
3. Amendments to this Law are provided in the Appendix.

For any comments or inquiries, please contact the Official Translation Department at:

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Anti-Cybercrime Law

Article 1

In this Law, the following words and phrases shall have the meanings assigned thereto, unless the context requires otherwise:

1. **Person:** Any natural person or legal person, whether public or private.
2. **Information System:** A set of programs and devices designed to manage and process data, including computers.
3. **Information Network:** An interconnection of more than one computer or information system for obtaining and exchanging data, such as local area networks (LAN), wide area networks (WAN), and the World Wide Web (Internet).
4. **Data:** Information, commands, messages, audio, or images which are prepared or have been prepared for use in a computer as well as any information which can be stored, processed, transmitted, or created by a computer, such as numbers, letters, symbols, and the like.
5. **Computer Programs:** A set of commands and data containing instructions or applications which perform certain functions when run on computers or computer networks.
6. **Computer:** Any movable or fixed electronic device, whether wired or wireless, which is equipped with a system to process, store, transmit, receive, or browse data, and which performs specific functions according to programs and commands.
7. **Unauthorized Access:** The deliberate unauthorized access of a person to a computer, website, information system, or computer network.
8. **Cybercrime:** Any act which involves the use of computers or information networks in violation of the provisions of the Law.
9. **Website:** A site which provides data on an information network through a uniform resource locator (URL).
10. **Reception:** Illegally viewing or obtaining data.

Article 2

This Law aims to combat cybercrimes by identifying such crimes and prescribing the penalties therefor, to achieve the following:

1. Enhancing information security.
2. Protecting rights relating to the legitimate use of computers and information networks.
3. Protecting public interest, morals, and values.
4. Protecting the national economy.



Article 3

Any person who commits any of the following cybercrimes shall be subject to imprisonment for a period not exceeding one year and a fine not exceeding five hundred thousand riyals, or to either penalty:

1. Spying on or reception or interception of data transmitted through an information network or a computer without legal authorization.
2. Unauthorized access with the intention of threatening or blackmailing a person to compel him to take an action or refrain from taking an action, be it lawful or unlawful.
3. Unauthorized access to a website, or hacking a website to change its design, destroy or modify it, or occupy its URL.
4. Violation of privacy through the misuse of camera-equipped mobile phones, or the like.
5. Defamation and infliction of damage upon others through the use of information technology devices.

Article 4

Any person who commits any of the following cybercrimes shall be subject to imprisonment for a period not exceeding three years and a fine not exceeding two million riyals, or to either penalty:

1. Acquisition of movable property or bonds for oneself or others, or signing such bonds, through fraud or the use of a false name or identity.
2. Illegal access to bank or credit data, or to data pertaining to the ownership of securities, with the intention of obtaining data, information, funds, or services.

Article 5

Any person who commits any of the following cybercrimes shall be subject to imprisonment for a period not exceeding four years and a fine not exceeding three million riyals, or to either penalty:

1. Unauthorized access with the intention of canceling, deleting, destroying, leaking, damaging, altering, or redistributing private data.
2. Causing an information network to halt or breakdown, or destroying, deleting, erasing, leaking, damaging, or altering the programs or data thereof or used therein.
3. Obstructing access to, distorting, or causing the breakdown of services by any means.



Article 6

Any person who commits any of the following cybercrimes shall be subject to imprisonment for a period not exceeding five years and a fine not exceeding three million riyals, or to either penalty:

1. Production, preparation, transmission, or storage of material that violates public order, religious values, public morals, or privacy, using an information network or a computer.
2. Construction or publication of a website on an information network or a computer to promote or facilitate human trafficking.
3. Production, publication, or promotion of material and data for pornographic networks or gambling activities.
4. Construction or publication of a website on an information network or a computer for the purpose of trading or dealing in narcotic drugs and psychotropic substances, demonstrating the methods of use thereof, or facilitating dealing therein.

Article 7

Any person who commits any of the following cybercrimes shall be subject to imprisonment for a period not exceeding 10 years and a fine not exceeding five million riyals, or to either penalty:

1. Construction or publication of a website on an information network or a computer for terrorist organizations to facilitate communication with the leaders or members of such organizations, finance them, or promote their ideologies, or to publish methods for making incendiary devices, explosives, or any other means used in terrorist activities.
2. Unauthorized access to a website or an information system directly, or through an information network or a computer, to obtain data that threatens the internal or external security of the State or its national economy.

Article 8

The imposed imprisonment and fine shall not be less than half the maximum penalty in the following cases:

1. The crime is perpetrated through organized crime.
2. The offender holds a public office and the crime is related to the office, or the offender perpetrates the crime using his power or influence.
3. The crime involves luring and exploiting minors and the like.
4. The offender has been previously convicted of similar crimes inside the Kingdom or abroad.

Article 9

Any person who incites, assists, or collaborates with others to commit any of the crimes provided for in this Law shall be subject to a penalty not exceeding the maximum penalty prescribed for the crime if the crime is committed as a result of said incitement, assistance, or collaboration. If, however, the crime is not committed, such person shall be subject to a penalty not exceeding half the maximum prescribed penalty.



Article 10

Any person who attempts to commit any of the crimes provided for in this Law shall be subject to a penalty not exceeding half the maximum penalty prescribed for the crime.

Article 11

The competent court may exempt from punishment any offender who informs the competent authority of the crime prior to its discovery and prior to the infliction of damage. If, however, the offender informs the competent authority of the crime after its discovery, exemption from punishment shall be granted if the information provided by the offender leads to the arrest of the remaining offenders, if any, or to the seizure of the means used in the commission of the crime.

Article 12

Application of this Law shall not prejudice the provisions of relevant laws, especially those relating to intellectual property rights, nor shall it prejudice relevant international agreements to which the Kingdom is party.

Article 13

Without prejudice to the rights of bona fide parties, a decision may be issued for the confiscation of the devices, programs, and means used in the commission of any of the crimes provided for in this Law, or the proceeds generated therefrom. In addition, a decision may be issued for the temporary or permanent closure of the website or the location where the service is provided if it is the source of the crime and the crime was committed with the owner's knowledge.

Article 14

The Communications and Information Technology Commission shall, in accordance with its powers, provide assistance and technical support to the competent security agencies during the detection and investigation of such crimes and during trial.

Article 15

The Bureau of Investigation and Public Prosecution shall investigate and prosecute the crimes provided for in this Law.

Article 16

This Law shall be published in the Official Gazette and shall enter into force 120 days following the date of its publication.



Appendix

Amendments

May 11, 2015 (Rajab 22, 1436H)

Royal Decree No. M/54 provides for the following:

- Amending Article 6 by adding the following paragraph to its ending:

"The penalty decision may include a provision to publish its summary at the expense of the convicted person in a local newspaper, or more, or through any other appropriate medium, based on the type, gravity, and impact of the crime, provided that publication is made after the decision becomes final".